

Eligibility Requirements

Policy: To be certified as eligible for WIC Program benefits, an applicant must meet required criteria for category, residence, income, and nutritional risk.

Regulations: 7 CFR 246.7

Procedure/Additional Guidance:

Eligibility Criteria

Categorical: The individual must be a pregnant, postpartum or breastfeeding woman, or an infant or child under five years of age.

Category	Definition
PREGNANT WOMAN*	Woman determined to have one or more fetuses in utero.
NON-BREASTFEEDING, POSTPARTUM WOMAN	A woman up to six months after termination of pregnancy. Termination of pregnancy may occur with delivery of an infant or be due to miscarriage or therapeutic abortion.
BREASTFEEDING WOMAN	A woman up to one year postpartum who is breastfeeding her infant on the average of at least once a day.
INFANT	A person under one year of age (has not yet reached their first birthday).
CHILD	A person who is one year of age but who has not reached their fifth birthday.

***Proof of Pregnancy**

No local agency may require proof of pregnancy as a condition of eligibility for WIC services. Requiring confirmation of an applicant's pregnancy can act as a barrier to intervention and enrolling women in WIC as early as possible in their pregnancy. Agencies may ask women for proof of pregnancy in cases of suspected dishonesty when there is reasonable doubt the pregnancy exists; however, the agency may not withhold services, disqualify, or terminate the participant if they refuse to provide proof. In cases of suspected dishonesty, participants When reasonable doubt exists of a pregnancy, may be reminded that they have signed a form stating that all information they have presented to determine eligibility is truthful.

- **Residence:** The individual must live in Colorado.
- **Income:** The family's income must meet specified guidelines.
- **Nutritional Risk:** The individual must be determined to be at nutritional risk, as documented by a thorough nutritional assessment (growth, hemoglobin/hematocrit, health/medical, nutrition practices, lifestyle, personal factors, etc.).